

Meeting Name:	Licensing Committee
Date:	29 January 2026
Report title:	Licensing Act 2003: Review of Statement of Licensing Policy 2026 to 2031
Ward(s) or groups affected:	All Wards
Classification:	Open
Reason for lateness (if applicable):	Not applicable
From:	Strategic Director of Environment, Sustainability and Leisure

RECOMMENDATIONS

1. That the Licensing Committee:
 - a) Considers and approves Southwark's Statement of Licensing Policy 2026-2031, provided at **Appendix A**.
 - b) Considers whether any further amendments to Southwark's Statement of Licensing Policy 2026-2031 are required following the public consultation.
 - c) That the committee recommend that Council Assembly agree to the publication of the Southwark Statement of Licensing Policy for 2026-2031 (Appendix A).

BACKGROUND INFORMATION

2. The Licensing Act 2003 came into effect on 25 November 2005. The Act introduced a regime for the licensing of alcohol, regulated entertainment and late-night refreshment, to be administered by the local licensing authority
3. Section 5 of the 2003 Act requires each licensing authority to prepare and publish a statement of licensing policy every five years. The policy statement is expected to set out, for the benefit of applicants, responsible authorities and members of the local community, how the authority intends to approach its licensing responsibilities under the Act. Each authority is also required to keep the statement of policy under review throughout its term and make appropriate revisions as necessary.

4. The initial Southwark statement of licensing policy was considered and approved by the full council assembly on 6 December 2004. It was compiled with regards to the provisions of the Act itself, secondary regulations and guidance issued by the Home Office. It has been kept under constant review since that date. The current (sixth) version of the policy for 2021 – 2026 was a full revision and was adopted at council assembly on 25 November 2020 and came into effect in January 2021.
5. Since the commencement of the current 2021-2026 statement of licensing policy, there have been a number of issues that have arisen at licensing sub-committee meetings where members, responsible authorities and applicants have requested clarification. The amendments in this revision seek to clarify Southwark's position and are believed to be appropriate and necessary.
6. On 1 September 2025, the Licensing Committee agreed that amendments to the policy and to extend the Late Night Levy to include late night refreshment premises operating between 00:00 (midnight) and 06:00 should be put to a full public consultation.
7. In accordance with our statutory obligations, a full review of the policy and public consultation has been undertaken.

KEY ISSUES FOR CONSIDERATION

Revised Policy Amendments

8. The changes that have been made to the policy are as follows:

Item	Details
Comprehensive Policy Revision	A full review of the current policy to enhance clarity, accessibility, and simplicity.
Updated Structure and Layout	The policy has been restructured to better reflect the roles of the Licensing Authority and Licensing Committee.
Document Introduction	The policy now opens with a foreword from the Chair of the Licensing Committee, followed by an Executive Summary and an overview of the London Borough of Southwark, including ward profiles and core principles .
Purpose and Scope of the Licensing Policy	Revised for clarity and to reflect legislative and policy changes. Redundant content from other documents has been removed, with references provided where appropriate.

Item	Details
Personal Licence Applications	New content added to clarify the treatment of personal licence applications within the scheme of delegations.
Schedule of Delegations	Updated to improve clarity and remove duplication of legislative and third-party policy content.
Premises and Club Licence Applications	Lead paragraphs have been reworded, and mandatory conditions already covered by legislation and statutory guidance have been removed.
Cumulative Impact Areas (CIAs)	Introductory text has been revised for clarity. Detailed CIA descriptions and improved maps are now located in Appendix B.
Early Morning Restriction Orders (EMROs) and Late Night Levy	These tools have been incorporated into the same chapter due to their shared purpose in addressing similar issues.
Hours of Operation	The previous 'suggested times' have been replaced with a new table of 'recommended licensable hours', tailored by premises type and location.
Licensing Objectives	Each of the four licensing objectives is now clearly presented as a sub-section
Crime and Disorder	Rewritten to focus on key issues. Outdated references and unrelated policies have been removed. Adult entertainment content has been redirected to the relevant standalone policy.
Public Safety	Streamlined to remove duplicated third-party guidance while retaining references to key legislation.
Prevention of Public Nuisance	Revised to focus on core issues. Includes new guidance on outdoor and large-scale events requiring early engagement.
Protection of Children from Harm	Outdated content and references (e.g. PAL London card scheme) have been removed. Updated age verification guidance and child access provisions are included, along with references to relevant child welfare agencies.
Extend submission time to the Licensing Service	from 1 month to 2 months for Film certifications
Enforcement Policy	Matters have been updated with no change in emphasis.

Item	Details
Appendix A - Contact Details	Contact details checked and updated.
Appendix B - Cumulative Impact Areas	Details of each CIA updated where required, with clear mapping.
Appendix C - Other related legislation and Strategies	Update of the Safer Women's Charter, inclusion of other safety schemes and Safe Havens.
Other related legislation and Strategies	Updated information and the inclusion of a reference to Terrorism (Protection of Premises) Act 2025 (Martyn's Law).
Extend the Late Night Levy	To incorporate premises that provide late-night refreshment between 00:00 (midnight) and 06:00.

Consultation for 2026-2031 statement of licensing policy

9. Public consultation of the revision of the Southwark statement of licensing policy has been undertaken with in accordance with section 5(3) of the Licensing Act 2003.
10. The consultation process was designed to be inclusive and participatory, ensuring that all voices were heard and considered. By engaging a diverse range of stakeholders, the council ensured the policy reflected community priorities while meeting statutory obligations. This approach demonstrated a commitment to transparency and fairness, making the consultation a genuine opportunity for engagement rather than a formality.
11. Feedback mechanisms were designed to be user-friendly, allowing stakeholders to share views easily. The adaptive online and offline strategy ensured messages were clear and accessible, meeting people where they are and using language that resonates. Respondents were asked to rate licensing objectives such as crime prevention, public safety, and protection of children, and were invited to suggest improvements.
12. As per the requirements of the Act, the council consulted on the revision of its Statement of the Licensing Policy 2026-31. The council complied with all statutory duties through:
 - A six-week statutory consultation was held from 19 September to 31 October 2025.
 - Use of various engagement channels, including an online survey, drop-in sessions, officer visits, leaflet distribution, and targeted outreach engagements.

- Promotion via email campaigns, website/email banners, and QR codes in libraries.
13. The consultation received 140 responses. The majority of respondents agreed that the draft policy was clear, well-structured, and balanced. There was robust support for maintaining the four statutory licensing objectives, and respondents recognised these objectives as fundamental to promoting public safety, preventing crime and disorder, protecting children from harm, and minimising public nuisance.
 14. However, the results also highlighted several operational concerns, particularly relating to the lack of enforcement. It is important to note that these issues are operational in nature and do not impact the substance or direction of the revised licensing policy. The overall response to the policy itself has been positive.
 15. The feedback recorded has been analysed, and full details of the results are provided in **Appendix B**.
 16. Where appropriate, changes have been incorporated into the revised policy. These amendments were mainly grammatical and/or clarity corrections and updates to relevant links in the policy.
 17. The policy has also been amended in line with the recent revised s.182 guidance and the National Licensing Policy Framework, published in November 2025, namely, to provide further clarity on Temporary Event submissions. The policy also reflects the Authority's commitment and acknowledges that where any inconsistency arises between this framework and the 2003 Act/section 182 Guidance, the Act and s.182 guidance prevails.
 18. The Statement of Licensing Policy 2026 – 2031 can be found at **Appendix A**.
 19. The committee is asked to consider the latest revision of the policy with a view to referring the matter to council assembly for adoption on 26 March 2026.

Community, equalities (including socio-economic) and health impacts

Community impact statement

20. The Southwark statement of licensing policy recognises that as long as alcohol and regulated entertainment licensed premises are well run and premises management acknowledges the value of working together with the local community, they can make a significant contribution toward building community cohesion and cultural development.

21. The policy equally recognises that negative impacts can also occur if good management practices are not followed. Potential negative impacts may arise in the form of noise, nuisance, disturbance and crime and disorder problems. With establishments selling alcohol there are also risks of individual alcohol addiction.
22. The policy seeks to provide the necessary balance between responsible business operators contributing toward a thriving business and late night economy whilst ensuring that the quality of life of those who live and work in the Borough is protected and enhanced through the licensing system. We believe these aims are achievable if all parties concerned work together.
23. Central to this, is a licensing process which aims to be inclusive and ensures that local community concerns are understood, debated and resolved. This is supported by offering broad support to licensees, through the range of involved authorities, to establish best practice management, and by a strong directed enforcement resource.

Equalities (including socio-economic) impact statement

24. Equality impact assessments are an essential tool to assist Councils to comply with the equalities duties and to make decisions fairly. Equalities and human rights impact assessments that are carried out should be mindful of the protected characteristics under the Equality Act 2010.
25. An assessment was carried out in relation to the revision of the policy prior to the consultation. Members will need to consider whether there are any potential negative impacts on the protected characteristics as outlined in the assessment at the Committee Hearing. A further assessment has been carried out following the public and statutory consultation in preparation for returning to the Licensing Committee. The current assessment is available in **Appendix C**. Any decision made by Members of the Committee will also have to hold this in mind.

Health impact statement

26. Licensing policies have an important role in promoting a healthier environment and protecting public health in Southwark. This policy enables licensed premises to introduce operating practices that aim to minimise risks to health and safety, such as binge drinking, accidents, and violence. It also allows the authority to restrict new licenses where the cumulative impact of licensed premises is negatively affecting local communities, through nuisance or disorder. Areas with high densities of licensed premises can be associated with increased rates of alcohol related hospital admissions, ambulance call outs, crime and antisocial behaviour. The policy can support licensing practice that reduces alcohol-related harm, which can disproportionately affect vulnerable communities.

Climate change implications

27. On 27 March 2019, the council declared a climate emergency and considers the implications of climate change in all of its decisions.
28. Southwark expects patrons to be mindful that Southwark has declared a climate emergency. In this context, operational measures such as abstaining from the use of patio heaters and avoiding the use of single-use plastics and following government guidance may be considered.
29. Decisions on licences must be in line with the licensing objectives; however as a physical premises requires planning consent, climate change can be addressed as part of the planning process.

Resource implications

30. The Southwark Statement of Licensing Policy 2026-2031 has no resource issues.
31. The resource costs of managing this process may be borne within the current licensing budget.

SUPPLEMENTARY ADVICE FROM OTHER OFFICERS

Assistant Chief Executive - Governance and Assurance

32. The Licensing Act 2003 (“the 2003 Act”) requires the council, as the licensing authority, to prepare and publish a statement of its licensing policy every five years.
33. In determining its policy, the council is exercising a licensing function and as such must have regard to the guidance issued by the Secretary of State under section 182 of the 2003 Act. It must also give appropriate weight to the views of those persons/bodies listed in section 5(3) of the Act, which it is required to consult before determining its policy.
34. Although the guidance represents best practice, it is not binding on the council. As long as the guidance has been properly and carefully understood and considered, licensing authorities may depart from it if they have reason to do so. In this event they will need to give full reasons for their decisions, which must be consistent with the objectives of the 2003 Act.

The Licensing Authority should take into account of the National Licensing Policy Framework (NLPF) (see: [National Licensing Policy Framework for the hospitality and leisure sectors \(web version\) - GOV.UK](#)), published in November 2025, when preparing this Statement of Licensing Policy. While the NLPF is non-statutory, its objectives and guidance is designed to support consistent, lawful and proportionate licensing decisions and policy development.

35. The council is required to have regard to the statement of licensing policy and make decisions in accordance with it. Licensing authorities may depart from their policy if the individual circumstances of any case merit such a decision in the interests of promoting the licensing objectives. In this event it is important that full reasons are given for departing from the published statement of licensing policy.
36. Members should note that the 2003 Act imposes a duty on the council, as the licensing authority, to carry out its functions under the Act with a view to promoting the four licensing objectives, namely:
- the prevention of crime and disorder
 - the promotion of public safety
 - the prevention of public nuisance
 - the protection of children from harm.
37. Each of these objectives is of paramount and equal importance. There are no other licensing objectives, and therefore the council cannot reject an application for a licence or impose conditions on a licence for any purpose unrelated to the promotion of these objectives. For example, whether or not there is a 'need' for another licensed premises in a given area is a matter for planning committees but is not a matter for a licensing authority in its statement of licensing policy or in discharging its licensing functions.
38. However, the cumulative impact of licensed premises on the promotion of the licensing objectives is a proper matter for the council to consider when adopting its statement of licensing policy. The guidance explains 'cumulative impact' as the potential impact on the promotion of the licensing objectives - for example crime and disorder and/or public nuisance - of a significant number of licensed premises concentrated in one area.
39. The statement of licensing policy cannot seek to impose 'blanket' conditions. Each application must be considered on its own merits. Conditions can only be imposed on a licence if they are necessary to promote the licensing objectives in relation to the specific premises and are a proportionate response to the specific situation to be addressed. The guidance provides that if the situation the condition is intended to address is already addressed by a provision in the 2003 Act or any other legislation, then the condition cannot be said to be 'necessary'.
40. Licensing is about regulating the carrying out of licensable activities within the terms of the 2003 Act. The statement of licensing policy should make it clear that licensing law is not the primary mechanism for the general control of nuisance and anti-social behaviour by individuals once they are beyond the direct control of the individual, club or business carrying on licensable activities. However, the guidance also states that licensing law is a key aspect of such control and should always be part of a holistic approach to the management of the evening and night-time economy. It is therefore desirable that the statement of licensing policy is in line with the

council's wider objectives and consistent with other policies.

41. Members should note that the statement of licensing policy must not be inconsistent with the provisions of the 2003 Act and must not override the right/s of any individual as provided for in that Act. Nor must the statement of licensing policy be inconsistent with obligations placed on the council under any other legislation, including human rights legislation. Members should also note that the council has a duty under Section 17 of the Crime and Disorder Act 1998, when carrying out its functions as a licensing authority under the 2003 Act; to do all it reasonably can to prevent crime and disorder within the borough.
42. Positive equalities obligations are placed on local authorities, sometimes described as equalities duties, with regard to race, disability and gender. Race equality duties were introduced by the Race Relations Amendment Act 2000, which amended the Race Relations Act 1976. Gender equalities duties were introduced by the Equality Act 2006, which amended the Sex Discrimination Act 1975. Disability equality duties were introduced by the Disability Discrimination Act 2005 which amended the Disability Act 1995.
43. Under the Local Authorities (Functions and Responsibilities) (England) Regulations 2000, as amended, decisions relating to licensing matters cannot be the responsibility of an authority's executive. The 2003 Act provides that whilst the majority of the functions of the licensing authority, are to be taken or carried out by its licensing committee, decisions relating to the statement of licensing policy cannot be delegated in such a way. The decision on whether to adopt the statement of licensing policy must therefore be taken by council assembly.

Strategic Director of Resources

44. This report is requesting the licensing committee to consider the recommendations set out in paragraph 1 above. The Strategic Director Resources notes the recommendations and that there are no identified additional resource implications as a result of these proposals, and notes that staffing and any other running costs connected with these recommendations are to be contained within existing departmental revenue budgets.

BACKGROUND DOCUMENTS

Background Papers	Held At	Contact
The Licensing Act 2003 plus secondary regulations	The Licensing Service, C/O 160 Tooley Street, London, SE1	Name: Mrs Esther Jones Email: esther.jones1@southwark.gov.uk
The Home Office Guidance to the Act (November 2025)		
Local Government (Miscellaneous Provisions) Act 1982		
National Licensing Policy Framework for Hospitality and Leisure Sectors (November 2025)		

APPENDICES

No.	Title
Appendix A	Southwark Statement of Licensing Policy 2026 – 2031
Appendix B	Consultation responses
Appendix C	Equalities Impact and Needs Analysis

AUDIT TRAIL

Lead Officer	Aled Richards, Strategic Director of Environment, Sustainability and Leisure		
Report Author	Bina Patel, Business Unit Manager Neighbourhood Nuisance		
Version	Final		
Dated	2 December 2025		
Key Decision?	Yes		
CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER			
Officer Title	Comments Sought	Comments Included	
Assistant Chief Executive – Governance and Assurance	Yes	Yes	
Strategic Director of Resources	Yes	Yes	
Cabinet Member	No	No	
Date final report sent to Constitutional Team		15 January 2026	